

HOUSE BILL 638

By Carringer

AN ACT to amend Tennessee Code Annotated, Title 33;
Title 56; Title 63; Title 68 and Title 71, relative to
healthcare providers.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 63, Chapter 1, Part 1, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Bureau" means the bureau of TennCare;

(2) "Director" means the director of TennCare;

(3) "Enrollee" means a person who is enrolled in a medical assistance
health benefit plan;

(4) "Healthcare provider" or "provider" means a person who is licensed,
certified, or otherwise authorized or permitted by the laws of this state to
administer health care in the ordinary course of business or practice of a
profession; and

(5) "Medical assistance health benefit plan" means a policy or contract
for health insurance coverage provided under:

(A) The TennCare program administered under the Medical
Assistance Act of 1968, compiled in title 71, chapter 5, part 1, or a
successor medicaid program; or

(B) The CoverKids Act of 2006, compiled in title 71, chapter 3,
part 11, or a successor program.

(b) A healthcare provider who participates in a medical assistance health benefit plan, including a provider participating in the provider network of a managed care organization that contracts with the bureau of TennCare to provide services under a medical assistance health benefit plan, shall not refuse to provide healthcare services to an enrollee based solely on the enrollee's refusal or failure to obtain a vaccine or immunization for a particular infectious or communicable disease.

(c) The bureau shall not provide reimbursement for a medical assistance health benefit plan to a provider who violates this section unless and until the bureau finds that the provider is in compliance with this section.

(d) Subsection (c) applies only with respect to an individual healthcare provider. The bureau shall not refuse to provide reimbursement to a provider who did not violate this section based on that provider's membership in a provider group or medical organization with an individual physician who violated this section.

(e) This section does not apply to a provider who is a specialist in:

- (1) Oncology; or
- (2) Organ transplant services.

(f) The director shall adopt rules necessary to implement this section, including rules establishing the right of a provider who is alleged to have violated this section to seek administrative and judicial review of the alleged violation. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

(g) The director may seek such federal waiver that the director deems necessary to effectuate this section.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.